

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

None

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to end the lifetime judicial appointment of state Judges in Massachusetts.

PETITION OF:

NAME:

KC Linardon

DISTRICT/ADDRESS:

DATE ADDED:

1/23/2025

HOUSE No.

[Pin Slip]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to end the lifetime judicial appointment of state Judges in Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Initiative Petition for Law Relative-propose a legislative amendment to the Constitution
2 to end the lifetime serve till retirement appointment of Judges and require the appointment of
3 Judge's to maximum of 3 years only. There will be no reappointment after the 3 years ends. The
4 general public population must be involved in any selection or nomination of the Judges by the
5 Governor. The nomination or selection of any judge by the Governor must obtain the approval of
6 the public, the people of Massachusetts prior to sending the nominee's name to the Governor
7 Council's members.

8 There must be transparency on the selection of these judges and The Governor must
9 include the general public opinions and approval from the people of Massachusetts and
10 especially must include the approval from different diversities, minorities, non-economic and
11 disadvantaged communities.

12 There must be public population transparency in the entire vetting process and acceptance
13 of the Governors' judicial nominee to the Judicial Bench. If the general public population and

people of Massachusetts do not support, agree, or approve the nomination of selection of a judge, then that judge cannot be appointed to that judicial bench.

There are three bodies of Government: (1) The Legislative, (2) The Judicial and (3) The people. The voice or the rights of people have been ignored for far too long and this need to stop immediately because we need fair and equal balance in our government. Be it enacted by the People and by their authority:

During the 3 years maximum appointment, if there are public complaints of poor performance and poor public reviews of the judge, then that Judge cannot be allowed to finish the 3 years maximum appointment.

The Judicial is not a monarchy. In our democracy, the judicial should not be a lifetime appointment.

There are already similar same proposal reports in the Federal Judicial appointment of Supreme Court Judges. See "The Legislative Path to Supreme Court Reform"
<https://www.youtube.com/watch?v=StLFV-aRl0I&t=857s>

Any organization without any independent, impartial, non-partisan oversight will invariably become corrupt and began to serve its own interests and purposes but not the interest and purpose for which it was intended.

The entire Justice System in Massachusetts simply does not have any checks and balances on its exercise of power. Each section of it reviews itself and there is no truly independent and non-partisan review process at all. The judges review judges. They have used

laws to protect themselves from their negligence and outright wrongdoings to maintain their power base.

As it is said, one of the many duties of a court judge is to oversee the administration of justice impartially and fairly in the public interest. The Judges do not care to practice what they preach or respect the oath that they took.

In the Supreme Judicial Court (June 3, 2020) letter decrying racism in the justice system it states:

Letter from the Seven Justices of the Supreme Judicial Court to Members of the Judiciary and the Bar (June 3, 2020)

Dear Members of the Judiciary and the Bar:

The events of the last few months have reminded us of what African-Americans know all too well: that too often, by too many, black lives are not treated with the dignity and respect accorded to white lives. As judges and as lawyers, we are both saddened and angry at the confluence of recent events that have revealed how much more we need to do to create a just, fair, and peaceful society.

But we must do more than express our feelings of sadness and anger.

As judges, we must look afresh at what we are doing, or failing to do, to root out any conscious and unconscious bias in our courtrooms; to ensure that the justice provided to African-Americans is the same that is provided to white Americans; to create in our courtrooms, our corner of the world, a place where all are truly equal.

As lawyers, we must also look at what we are doing, or failing to do, to provide legal assistance to those who cannot afford it; to diminish the economic and environmental inequalities arising from race; and to ensure that our law offices not only hire attorneys of color but also truly welcome them into the legal community.

And as members of the legal community, we need to reexamine why, too often, our criminal justice system fails to treat African-Americans the same as white Americans, and recommit ourselves to the systemic change needed to make equality under the law an enduring reality for all. This must be a time not just of reflection but of action.

There is nothing easy about any of this. It will be uncomfortable: difficult conversations, challenging introspection, hard decisions. We must recognize and address our own biases, conscious and unconscious. We must recognize and condemn racism when we see it in our daily lives.

We must recognize and confront the inequity and injustice that is the legacy of slavery, of Jim Crow, and of the disproportionate incarceration of African-Americans, and challenge the untruths and unfair stereotypes about African-Americans that have been used to justify or rationalize their repression. And we must examine the underlying reasons why African-Americans have suffered disproportionately from the COVID-19 pandemic, both in terms of the number of deaths and the extent of economic hardship it has caused, and, where possible, address the causes of those disparities.

Perhaps most importantly, it is a time for solidarity and fellowship with African-American judges and attorneys, to acknowledge their pain, to hear about the conversations they

now have with their children, and to stand together when others may try to divide us. As Dr. Martin Luther King, Jr. wrote from a Birmingham jail:

“Injustice anywhere is a threat to justice everywhere. We are caught in an inescapable network of mutuality, tied in a single garment of destiny. Whatever affects one directly, affects all indirectly.”

Sincerely,

Ralph D. Gants, Chief Justice

Barbara A. Lenk, Associate Justice

Frank M. Gaziano, Associate Justice

David A. Lowy, Associate Justice

Kimberly S. Budd, Associate Justice

Elsbeth B. Cypher, Associate Justice

Scott L. Kafker, Associate Justice

Many judges especially in Superior court, Family and probate court and Appellate court have use their lifetime Judicial position as privilege to Instigate of hate crimes, racial segregation and discrimination to the poor and to vulnerable disadvantage individuals even targeting, oppressing Civil rights and Human rights activists, advocates and making constant attempts at shutting down free speech. Deprivations of due process rights and deprivations of equal access to

95 the court on the most disadvantage vulnerable litigants and Pro Se litigants are constitutional
96 violations.

97 They have used their lifetime positions excessively with extreme bias and prejudice to
98 abuse, to silence the Human and Civil activists and discriminate on Pro Se litigants, the most
99 vulnerable disadvantages people especially black people of color, Latinos, poor Caucasians,
100 weak fragile Elderlies and Individuals with chronic Disabilities/handicaps. We the people of
101 Massachusetts, the public cannot afford to be silent anymore because this is a public interest
102 issue.

103 They have used their lifetime positions excessively to will and deal with the richest and
104 most famous in our state while the poor are deprived of the same equal protection and therefore
105 violating our Federal Constitutionals rights on the right to be heard. They even prematurely
106 dismiss our Jury demand civil merit cases before it even began just because you are not rich
107 enough for them or your name is not famous enough, you are not a politician or government
108 agency. Our state court houses, the taxpayer's courthouse has turn into the court for government
109 agencies, the richest and the most famous but not for the average Joe the people of
110 Massachusetts.

111 They have used their lifetime appointment privileges to blatantly support of immorality,
112 unethical, corruptions and have turn the court into where money talks, if you are the richest and
113 the most famous, you get the due process rights and hearings while unfairly win cases against the
114 poor or the most vulnerable. If you are poor person or person of color your right to be heard
115 under the constitution will be stripped and deprived. If it is a civil case and you are the plaintiff
116 over the rich big name's defendants, your case will be prematurely dismissed before you even

117 have the opportunity to your jury demand proceedings. You just don't have a chance of due
118 process no matter how well or strong your case is.

119 These judges have turned our state courthouse into a fiasco, a complete public disgrace
120 especially where the highest bidder owns the courthouse judges and have the priority to have
121 their cases proceed and if you are a Pro Se, poor, Disabled, or person of color especially black
122 communities or the disadvantage category you might as well kiss your case goodbye, it won't get
123 to the Jury because you don't matter. Many judges especially in Superior court, Family and
124 probate court and Appellate court have use their lifetime privileged to obstruct justice because
125 they feel that since they are lifetime appointed, they can do whatever they want and get away
126 with it. Some of them behave and makes comments as if they are God himself or above God and
127 we cannot allow this anymore because nobody is above the law.

128 There is no honor to their corrupted Judicial dishonesty, and they cannot be called "Your
129 Honorable." The courthouse belongs to the people and not for the richest and the most famous.